

PLUGANDPLAY

Shamrock Foods

Ecosystem Corporate Membership
Agreement
Supply Chain
Plug and Play Phoenix Arizona

This Corporate Membership Agreement ("Agreement") is made effective as of February 01, 2025 ("Effective Date"), by and between Shamrock Foods Company, an Arizona corporation whose principal office is located at 3900 East Camelback Road, Suite 300, Phoenix, Arizona 85018 ("CLIENT"), and Plug & Play, LLC (also doing business as "Plug and Play Tech Center") whose principal office is located at 440 N Wolfe Rd., Sunnyvale, CA 94085 (hereinafter "Plug and Play"). Plug and Play and CLIENT hereinafter jointly referred to as the "Parties" and individually to as the "Party."

1. The Scope of the Agreement

1.1. CLIENT is seeking a deeper engagement with Plug and Play to drive business growth opportunities for CLIENT through pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the supply chain space. To ensure CLIENT's success as a strategic member of Plug and Play's ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Ecosystem Membership—Plug and Play Supply Chain

1.2.1. The execution of the Agreement will grant CLIENT a status of "Ecosystem Member" of Supply Chain at Plug and Play Phoenix Arizona.

1.2.2. As an Ecosystem Member, CLIENT will pay the fees described in **Exhibit A** and benefit from the services listed in Section 2.

2. Ecosystem Benefits—Plug and Play Supply Chain

Plug and Play accelerates up to two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT in the Supply Chain industry (the "Program"). As an Ecosystem Member, CLIENT will receive the following:

2.1. Sourcing and Startup Introductions

2.1.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business challenges. These connections are made through "Dealflow Sessions"—up to four per Segment (as defined in Exhibit A). Dealflow Sessions are structured as follows:

- a) CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes

to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to at four startups during the Dealflow Session.

- b) At the Dealflow Session, each of the selected startups will present to CLIENT, followed by open discussions between the selected startups and CLIENT.
- c) If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.

2.1.2. Ad-Hoc Introductions: Plug and Play will make ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Fee Schedule).

2.1.3. Playbook: During the Term, CLIENT may access Plug and Play's proprietary virtual platform called "Playbook". Playbook allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members' use. CLIENT's representatives that wish to use Playbook must first create a profile on the Playbook platform.

2.2. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. CLIENT may send representatives to attend EXPO.

2.3. Events & Workshops

CLIENT's marketing and business development representatives are invited to participate and promote CLIENT's brand and products at all Supply Chain events and workshops. Plug and Play will provide:

2.3.1. Community Events: During the Term, Plug and Play will host events to build community within the innovation ecosystem focused on exposure between members of the Program, members of other programs, and startups. CLIENT may attend any community event during the Term.

2.3.2. Internal Events: Plug and Play will invite CLIENT to regular internal events during the Term, including, but not limited to, workshops, conferences, and roundtable discussions in the Supply Chain industry. Plug and Play may invite CLIENT to internal events relating to other industries in Plug and Play's sole discretion.

2.3.3. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT may attend any FPS either virtually or in-person.

2.4. Community, Branding, and Marketing

Branding in Silicon Valley: A CLIENT placard will be positioned on Plug and Play's strategic member wall at its Silicon Valley headquarters. Plug and Play will also note CLIENT as a member on its website. In each case such use of CLIENT's name will be solely used as expressly authorized by CLIENT in writing and in CLIENT's sole and absolute discretion.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

3.1. Plug and Play will ask for prior written permission from CLIENT to use CLIENT's logo and trademarks ("Marks") for each instance of use, which may be withheld in CLIENT's sole and absolute discretion. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play. For the Term, CLIENT hereby grants Plug and Play a non-exclusive, non-transferable, royalty-free license (without the right to sublicense) to use the Marks solely in connection with the purposes set forth in this Agreement. Plug and Play shall use the Marks in a manner that complies with CLIENT'S brand guidelines and any other instructions provided by CLIENT. Plug and Play shall not alter or modify the Marks in any way without the prior written consent of CLIENT. Plug and Play acknowledges that CLIENT is the sole owner of the Marks, and all goodwill associated with the Marks. Plug and Play will not take any action that is inconsistent with CLIENT's ownership of the Marks.

3.2. CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and

Play Marks used by CLIENT. For the Term, Plug and Play hereby grants CLIENT a non-exclusive, non-transferable, royalty-free license (without the right to sublicense) to use the Plug and Play Marks solely in connection with the purposes set forth in this Agreement.

4. Intellectual Property

- 4.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT and a technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2.** If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

5. Confidentiality

- 5.1. Prior to and during the Term, the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the "Confidential Information"). This Confidential Information includes, but is not limited to, trade secrets, processes, reports, studies, statistics, writings, documents, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and client lists, business contact lists, intellectual property, and any and all information related to each Parties respective business. For the avoidance of doubt, Confidential Information also includes the terms of this Agreement and any other agreement CLIENT has with Plug and Play. The Parties understand that each has invested substantial effort into developing this Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any Confidential Information confidential and only use Confidential Information in furtherance of this Agreement. Parties agree that they shall not disclose (except to employees or representatives of a Party who have a need to know such information), market, develop, or cause to be marketed the other Party's Confidential Information without prior written consent. Business decisions and discussions regarding the internal business matters of Plug and Play are confidential and not public information. This confidentiality provision shall survive the expiration or earlier termination of this Agreement and the Party that receives Confidential Information shall continue to have an obligation retain Confidential Information as confidential for so long as the disclosing Party considers the Confidential Information as confidential.
- 5.2. The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:
- 5.2.1. was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party;
 - 5.2.2. was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party;
or
 - 5.2.3. was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement regarding the information.
- 5.3. All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during

all and any oral communication, shall be and remain property of the disclosing Party.

6. Indemnity

Each Party shall defend, indemnify, protect and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the "Indemnified Parties"), for, from and against any and all lawsuits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys' fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as "Claims") which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to: (a) breach of any representation or warranty by the indemnifying Party contained in this Agreement, (b) breach of any applicable law by such indemnifying Party, (c) the gross negligence or willful misconduct by such indemnifying Party or its Representatives, or (d) any claim of infringement of the indemnifying Party's trademarks licensed under this Agreement.

7. Limitation of Liability

Except for the indemnification obligations above, the liability for either Party under this Agreement shall be limited to the total amount of fees paid by Client to Plug and Play and in no event shall either Party be liable to the other Party for any special, incidental, punitive, or consequential damages.

8. Term and Billing

See **Exhibit A: Fee Schedule** attached to and incorporated in this Agreement for details.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

Wherever under this Agreement one Party is required to give notice to the others, such notice will be deemed effective: (a) five (5) calendar days after deposit in the United States Mail, postage prepaid, certified or registered mail, return receipt requested; (b) one (1) day after deposit with a national overnight courier; (c) if given by electronic mail (email), one (1) day after transmission, provided confirmation of such notice is also sent by national overnight courier or delivered in person; or (d) upon delivery if delivered in person or by messenger, in each case, addressed to the addresses set forth above (or such other address as any Party may be notified of as described above).

Plug & Play, LLC
Attention:
Address: 440 N Wolfe Rd.,
Sunnyvale, CA 94085
Email:

Shamrock Foods Company
Attention:
Address: 3900 East Camelback Road, Suite 300,
Phoenix, AZ 85018
Email:

With a copy to:
Shamrock Foods Company
3900 East Camelback Road, Suite 300
Phoenix, AZ 85018
Attention: Legal Department, and, if by email, to
legal@shamrockfoods.com

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date and in such event shall be relieved of any further payment obligations and shall be entitled to a pro rated refund for then then-current Segment.

14. Choice of Law; Jurisdiction; Waiver of Jury Trial

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the laws of State of Arizona without application of its conflict of law or choice of law rules. Any controversy, claim or dispute arising out of or relating to this Agreement shall be brought in any court of competent jurisdiction in the state and federal courts located in Maricopa County, Arizona, and the Parties hereby consent to the personal jurisdiction of such courts. TO THE EXTENT PERMITTED BY LAW, THE PARTIES HEREBY EXPRESSLY WAIVE THE RIGHT TO A TRIAL BY JURY.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, and any attempt to do so will be null and void *ab initio*, without any effect whatsoever, provided, however, that CLIENT may assign, transfer or convey this Agreement to (a) any affiliate of CLIENT, or (b) a successor in connection with a sale of all or substantially all of the assets of CLIENT, all or substantially all of the capital stock of CLIENT, or a merger or other reorganization, upon written notice to Plug and Play.

16. Representations and Warranties

Each Party represents and warrants to the other that (a) it has full right, power, authority and legal capacity to enter into this Agreement and perform its obligations hereunder; and (b) when executed and delivered, this Agreement and each other document or instrument required in connection herewith will constitute a legal, valid and binding obligation enforceable against such Party in accordance with its terms. Each Party represents, warrants and covenants that it shall comply with all applicable laws, rules, orders and regulations in its performance under this Agreement. Each Party represents and warrants to the other that before executing this Agreement it had the opportunity to review this Agreement with independent counsel of its choice, it has completely read and fully understands the provisions of this Agreement, in executing this Agreement it has not relied on any promise or representations made by any person other than the promises and representations explicitly stated in this Agreement, and that it has acted freely and under no duress or undue influence in executing this Agreement.

17. Other

Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be executed in any number of counterparts, each of which will be deemed an original, but all such counterparts together will constitute but one and the same instrument. This Agreement and all related documents to be entered into in connection herewith will be considered signed when the signature of a party is delivered by scanned image (for example, .PDF or .tiff file extension name) as an attachment to electronic mail (email). Such scanned signature shall be treated in all respects as having the same effect as an original signature and original copy. All rights, duties and obligations which by their nature shall apply beyond the term of this Agreement, including, without limitation, the terms and conditions of Sections 5 and 6, shall survive and remain in force after expiration or termination of this Agreement.

(Signature page follows)

Acknowledged, Accepted and Agreed:
Plug & Play, LLC

A handwritten signature in dark ink, appearing to read 'Fredrik Bohn', written over a horizontal line.

Name: Fredrik Bohn

Title: Sr. Director

Date: 2/4/2025

Shamrock Foods Company

A handwritten signature in dark ink, appearing to read 'Devon McClelland', written over a horizontal line.

Name: Devon McClelland

Title: President

Date: 02/03/2025

Exhibit A: Fee Schedule

Description of Work	Segment Amount	Segment Term
Ecosystem Membership (Supply Chain) - Segment 1	\$200,000.00	Start Date: February 1, 2025 End Date: January 31, 2026
Ecosystem Membership (Supply Chain) - Segment 2	\$200,000.00	Start Date: February 1, 2026 End Date: January 31, 2027
Ecosystem Membership (Supply Chain) - Segment 3	\$200,000.00	Start Date: February 1, 2027 End Date: January 31, 2028

Term, Billing, and Tax:

The term of this Agreement shall commence on the Effective Date and shall continue until January 31, 2028 (the "Term"). Each 12-month period of the Term commencing on February 01 is a "Segment."

CLIENT may terminate this Agreement effective at the end of Segment 2 by providing Plug and Play with written notice of its intent to terminate no later than 30 days prior to the end of Segment 2 (the "Termination Notice"). Early termination of this Agreement by CLIENT shall not entitle CLIENT to any refund of fees previously paid nor shall it release CLIENT from the obligation to pay fees that were previously invoiced pursuant to the Fee Schedule above but remain unpaid as of the effective date of CLIENT's early termination. If CLIENT provides the Termination Notice: (a) this Agreement will automatically expire on January 31, 2027, (b) CLIENT shall have no payment obligation to Plug and Play for the fees listed above for the third year of this Agreement (Segment 3), and (c) this Agreement will be of no further force and effect, and neither Party shall have any further rights or obligations, except for those that expressly survive termination or expiration.

Plug and Play will invoice CLIENT on the first date of each Segment listed above, in the amount designated for that Segment, subject to the termination right described above. Payments made under this Agreement are made in advance and are not refundable. CLIENT shall pay Plug and Play no later than 30 days after receipt of an undisputed invoice from Plug and Play.

All amounts payable under the Agreement are exclusive of any taxes or other government charges incurred by Plug and Play as a result of provision of the services to CLIENT pursuant to the Agreement. CLIENT will pay any and all sales, use, excise or other taxes (other than taxes measured on the income of Plug and Play).